

5 & 6 Vict.
c. 106.

or destroyed may be seized by any duly authorised officer of the fishery authority or any officer appointed by the fishery authority for the purposes of the Fisheries (Ireland) Act, 1842, and shall when seized be dealt with in the manner provided by section one hundred and three of the said Act, and for the purpose of such seizure any such officer may go on board any vessel engaged in whaling.

Legal proceedings and application of fees and penalties.

8.—(1) All offences under this Act may be prosecuted, and all penalties, costs, or expenses imposed or recoverable under this Act may be recovered in a summary manner, and a summons in respect of any such offence may be served upon the person to whom it is directed in any part of the United Kingdom.

5 & 6 Vict.
c. 106.

(2) Section eighty-nine (which relates to the powers of officers) and section ninety-six (which relates to the jurisdiction of magistrates of maritime counties) of the Fisheries (Ireland) Act, 1842, shall apply, with the necessary modifications, for the purposes of this Act.

62 & 63 Vict.
c. 50.

(3) All licence fees, penalties, and moneys paid or recovered under this Act shall, notwithstanding any provision in any other Act, be paid to the fishery authority, and shall be applied by that authority for the purposes of sea fisheries as defined by the Agriculture and Technical Instruction (Ireland) Act, 1899, or any Act amending that Act.

Interpretation.

9. In this Act the expression "whaling steamer" includes any ship used for the purpose of capturing or killing whales, whether propelled by steam power or otherwise; and the expression "fishery authority" means the Department of Agriculture and Technical Instruction for Ireland; and the expressions "county district" and "county borough" have the same meanings respectively as in the Local Government (Ireland) Act, 1898.

61 & 62 Vict.
c. 37.

Application, commencement, and short title.

10.—(1) This Act shall apply to Ireland only and shall come into operation on the first day of January nineteen hundred and nine.

(2) This Act may be cited as the Whale Fisheries (Ireland) Act, 1908.

CHAPTER 32.

An Act to amend the Friendly Societies Act, 1896.

[1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Amendment of s. 8 of principal Act as to societies which

1. To the descriptions of societies which may be registered as friendly societies, contained in subsection (1) of section eight of the Friendly Societies Act, 1896 (herein-after referred to as

the principal Act), the following paragraph shall be added after paragraph (e):—

“ or

- (f) guaranteeing the performance of their duties by officers and servants of the society or any branch thereof.”

may be registered.
59 & 60 Vict.
c. 25.

2.—(1) A person of or under one year of age may be admitted as a member of a registered society or branch, and accordingly in section thirty-six of the principal Act (which relates to the membership of minors) the words “ but above one year of age ” shall be repealed. Membership of minors under the age of one year.

(2) Where the rules of a registered friendly society or branch, in force at the commencement of this Act, provide for the admission as members of persons from the minimum age authorised by the principal Act, the rules shall be construed as providing for the admission as members of persons from birth.

3. In section forty-one of the principal Act “ three hundred pounds ” shall be substituted for “ two hundred pounds,” and “ fifty-two pounds ” for “ fifty pounds,” as the maximum amount a member or person claiming through a member of a registered friendly society or branch is entitled to receive by way of gross sum and by way of annuity respectively. Limitation of benefits.

4. In subsection (1) of section forty-four of the principal Act (which relates to the manner in which the funds of registered societies and branches may be invested) the following paragraph shall be added after paragraph (e):— Powers to invest funds in trust securities.

“ or

- (f) in any investment in which trustees are for the time being by law authorised to invest trust funds.”

5. The following subsection shall be added to section fifty-six of the principal Act (which relates to the power of members to dispose by nomination of sums payable on death): Nominations by members of branches.

- (6) A nomination or a variation or revocation of a nomination by writing under the hand of a member of a registered branch and delivered at or sent to the registered office of that branch, or made in a book kept at that office, shall be effectual notwithstanding that the money to which the nomination relates or some part thereof is not payable by that branch, but is payable by the society or some other branch.

6. In section sixty-eight of the principal Act (which relates to the decision of disputes) the words “ for not more than six months ” shall be repealed in paragraph (b) of subsection (1), and at the end of the section the following new subsection shall be added:— Disputes.

- “(8) In this section the expression ‘ dispute ’ includes any dispute arising on the question whether a member or person aggrieved is entitled to be or to continue

to be a member or to be reinstated as a member, but, save as aforesaid, in the case of a person who has ceased to be a member, does not include any dispute other than a dispute on a question between him and the society or branch or an officer thereof which arose whilst he was a member, or arises out of his previous relation as a member to that society or branch."

Preliminary expenses of investigations, &c.

7. In subsection (4) of section seventy-six of the principal Act (which relates to the expenses of inspections and special meetings) after the word "incidental" there shall be inserted the words "or preliminary."

Notice of investigation with a view to dissolution.

8. In section eighty of the principal Act, "one month" shall be substituted for "two months," as the length of notice to be given to a registered society or branch whose affairs are to be investigated upon an application for dissolution under that section.

Misapplication of property.

9. To subsection (3) of section eighty-seven of the principal Act (which relates to the punishment of fraud, false declaration and misappropriations) the following proviso shall be added:—

Provided that where on such a complaint against a person of withholding or misapplying property, or applying it for unauthorised purposes, it is not proved that that person acted with any fraudulent intent, he may be ordered to deliver up all such property or to repay any sum of money applied improperly, with costs, but shall not be liable to conviction, and any such order shall be enforceable as an order for the payment of a civil debt recoverable summarily before a court of summary jurisdiction.

Recovery of costs and expenses.

10. To section ninety-one of the principal Act (which relates to the recovery of fines) the following subsection shall be added:—

"(3) Any costs or expenses ordered or directed by the chief or other registrar to be paid by any person under this Act shall be recoverable summarily before a court of summary jurisdiction as a civil debt."

Legal proceedings.

11. At the end of section ninety-four of the principal Act (which relates to legal proceedings) the following subsections shall be added:—

"(6) Where proceedings are taken against a society or branch for the recovery of any fine under this Act the summons or other process shall be sufficiently served by leaving a true copy thereof at the registered office of the society or branch, or at any place of business of the society or branch, within the jurisdiction of the court in which the proceeding is brought, or, if that office or place of business is closed, by posting the copy on the outer door of that office or place of business:

“(7) Where the person against whom the proceedings are to be taken is himself a trustee of a society or branch the proceedings may be brought by the other trustees or trustee of the society or branch.”

12. At the end of section one hundred and three of the principal Act the following paragraph shall be added :—

Application to
the Isle of
Man.

(7) Any sum recoverable summarily as a civil debt shall be recoverable in accordance with the law and procedure in force in the Isle of Man for the recovery of civil debts.

13. At the end of section one hundred and six of the principal Act (which contains definitions) the following definition shall be added :—

Definition of
“signed.”

The expression “signed” in relation to a body corporate shall mean sealed.

14.—(1) This Act may be cited as the Friendly Societies Act, 1908, and the principal Act and this Act may be cited together as the Friendly Societies Acts, 1896 and 1908.

Short title,
construction,
commence-
ment, and
printing.

(2) This Act shall come in operation on the first day of January nineteen hundred and nine.

(3) Every enactment and word which is expressed to be substituted for or added to any portion of the principal Act shall form part of that Act in the place assigned to it by this Act, and that Act, and all Acts, including this Act, which refer thereto shall, as from the commencement of this Act, be construed as if the said enactment or word had been originally enacted in the principal Act in the place so assigned, and, where it is substituted for another enactment or word, had been so enacted in lieu of that enactment or word, and the expression “this Act,” as used in the principal Act or this Act, shall be construed accordingly.

(4) A copy of the principal Act with every such enactment and word inserted in the place so assigned, and with the omission of the parts expressly repealed by this Act, and with the subsections and paragraphs numbered and lettered in manner directed by this Act, shall be prepared and certified by the Clerk of the Parliaments, and deposited with the rolls of Parliament; His Majesty's printer shall print in accordance with the copy so certified all copies of the principal Act which are printed after the commencement of this Act.

CHAPTER 33.

An Act to amend the Telegraph Acts, 1863 to 1907, with respect to the Construction and Maintenance of Telegraphic Lines for telephonic and other telegraphic purposes. [1st August 1908.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :